

23STCV31522 23STCV31522

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C09%2F11%2F2026

Source SHA-256: 3839128fb26f47f329ea5108074413d3d4b074ee1788c73f45181daa9cfbc72a

Case Number: 23STCV31522 Hearing Date: September 11, 2026 Dept: B

Tentative Ruling

Roux v. 131 Olive Street, Case no. 23STCV31522

Hearing date September 11, 2026

Defendant

131 Olive Street's Omnibus Discovery Motion

Plaintiffs

Roux and Chestnut, successors in interest to decedent P. Chestnut, sue defendant 131 Olive Street, LLC for injuries to plaintiffs' decedent, who tripped and fell on defendant's property. Defendant 131 Olive filed an omnibus discovery motion, now moot, and seeks monetary sanctions. See 8/6/26 Notice. Plaintiffs oppose.

Defendant

seeks sanctions of \$3,210, arguing such are mandatory under Code Civ. Proc. §2023.030 for misuse of the discovery process. Defendant asserts plaintiffs failed to serve verified responses to discovery served on 7/23/24 and 12/11/25. See Decl. Karsaz, paras. 5-8. Defendant asserts no verified responses to the 12/11/25 discovery were received at the time this motion was filed. Id. at para. 16.

Verified

responses to the 7/23/24 discovery were served 10/21/24 (Decl. Miles, para. 2, exh. A), and responses to the 12/11/25 discovery were served 1/30/26. Id. at para. 5, exh. D. Initial, unverified responses were served on 1/14/26, and plaintiffs'

counsel informed defense counsel verifications would follow. Id. at paras. 3-4, exhs. B-C. Plaintiffs argue no sanctions are warranted, as responses were served, and verification were be forthcoming. Plaintiffs argue defendant failed to meet-and-confer prior to filing this motion.

Defendant

argues the two-week delay and proximity to the then-trial date necessitated filing the motion, and sanctions are warranted. Decl. Miles, para. 8. Defendant does not address purported meet-and-confer deficiencies. Defense counsel's one email addressed the the status of the verifications but did not identify the verification issue concerning the October 2024 responses and did not explain the relief it intended to seek. Id. at para. 9.

Defendant

did not meaningfully engage in efforts to resolve the dispute before filing its motion. Code Civ. Proc.

§2016.040 requires a party moving to compel discovery to make a reasonable good faith attempts to resolve the issue informally before seeking court intervention. Under the circumstances, the court find defendant's one email is insufficient to justify an award of sanctions, as it appears additional meet-and-confer efforts could have avoided this motion. DENIED.